

**STATE OF VERMONT
SECRETARY OF STATE
OFFICE OF PROFESSIONAL REGULATION
BOARD OF ALLIED MENTAL HEALTH PRACTITIONERS**

IN RE: RHONDA J. FOLEY
License No. 068-0000715

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DOCKET No. 2010-144

STIPULATION AND CONSENT ORDER

NOW COMES the State of Vermont, by and through its State Prosecuting Attorney, Edward G. Adrian, and the Respondent, Rhonda J. Foley, who stipulate and agree as follows:

Board Authority

1. The Vermont Board of Allied Mental Health Practitioners (the "Board") has jurisdiction to investigate and adjudicate allegations of unprofessional conduct committed by Clinical Mental Health Counselors pursuant to 3 V.S.A. §§ 129, 129a; 26 V.S.A. Chapter 65 and; the rules of the Board and the Vermont Office of Professional Regulation.
2. Failing to comply with provisions of federal or state statutes or rules governing the practice of the profession is unprofessional conduct upon which the administrative law officer can base disciplinary action. 3 V.S.A. §129a(a)(3).
4. Performance of unsafe or unacceptable patient or client care or failure to conform to the essential standards of acceptable and prevailing practice is unprofessional conduct. 3 V.S.A. §129a(b)(1) and (2).
5. Entering into an additional relationship with a client, supervisee, research participant or student that might impair the licensed clinical mental health counselor's objectivity or otherwise interfere with the clinical mental health counselor's obligations is unprofessional conduct. 26 V.S.A. § 3271(a)(6).
6. The Board may refer to the National Board for Certified Counselors (NBCC) "Code of Ethics" as amended, the American Counseling Association (ACA) "Code of Ethics and Standards of Practice," . . . As guidelines to the standards of practice for the professions subject to these rules. Although not in themselves additional grounds of unprofessional conduct, these ethical codes establish the standard of practice and fitness within the profession and are incorporated by reference into these rules. Administrative Rules for the Board of Allied Mental Health Practitioners. Rule 6.6.
7. Certified counselors are accountable at all times for their behavior. They must be aware that all actions and behaviors of the counselor reflect on professional integrity and, when inappropriate, can damage the public trust in the counseling profession. To protect public confidence in the counseling profession, certified counselors avoid behavior that is clearly in violation of accepted moral and legal standards. NBCC Code A(13).

8. Certified counselors who have an administrative, supervisory and/or evaluative relationship with individuals seeking counseling services must not serve as the counselor and should refer the individuals to other professionals. Exceptions are made only in instances where an individual's situation warrants counseling intervention and another alternative is unavailable. Dual relationships that might impair the certified counselors' objectivity and professional judgment must be avoided and/or the counseling relationship terminated through referral to a competent professional. NBCC Code B(9).
9. Counselor-client nonprofessional relationships with clients, former clients, their romantic partners, or their family members should be avoided, except when the interaction is potentially beneficial to the client. ACA Code A(5)(c).
10. Counselors claim or imply only professional qualifications actually completed and correct any known misrepresentations of their qualifications by others. Counselors truthfully represent the qualifications of their professional colleagues. Counselors clearly distinguish between paid and volunteer work experience and accurately describe their continuing education. ACA Code C(4)(a)

Statement of Facts

11. Rhonda J. Foley (the "Respondent") of Brandon, Vermont is a licensed clinical mental health counselor holding license number 068-0000715, issued by the State of Vermont. This license is set to expire on January 31, 2013.
12. On or about November 5, 2009 the Respondent created a letter (the "Letter") on behalf of her son D.F. The letter was addressed "to whom it may concern and could thus be used for any purpose. The name on the letter indicated the Respondent's name was Rhonda Foley-Wasnock. It was later determined that D.F. changed the letterhead from "Rhonda Foley."
13. In the Letter the Respondent indicated that she had rendered an assessment of D.F.; administered the "Burns Anxiety Inventory"; recommended work changes and mental health status; and indicated that "[i]t was this therapist's opinion that the work place that [D.F.] described was hostile, threatening and that this was responsible for the serious symptoms of psychological distress that [D.F.] was experiencing." The Letter failed to disclose the fact that the Respondent was D.F.'s mother.
14. The Letter was used in an unemployment hearing before an administrative law judge at the Vermont Department of Labor. At the hearing, the administrative law judge stated that he would not admit the letter from the Respondent because it was "totally inappropriate, and unethical for a therapist to be treating her own son."
15. In a written response to an inquiry from the Office of Professional Regulation the Respondent's explanation for writing the Letter and performing the assessment was that her son presented to her in a "crisis" unexpectedly and she is trained as a crisis professional. The Respondent claimed that she did not claim that the employer was

hostile, but was only reiterating what D.F. described.

16. By engaging in the above referenced behavior the Respondent committed unprofessional conduct because she engaged in an impermissible dual relationship by treating, assessing and providing an opinion for her son. Generated an open ended forensic opinion that was later used for a legal proceeding based on observations and testing of her son and did not disclose the nature of her relationship. When questioned the Respondent did not realize the severity or extent of the unprofessional conduct. By writing the Letter, the Respondent evidenced unfitness to practice and failed to conform to the essential standards of acceptable and prevailing practice.

Understandings

17. This Stipulation is neither an admission of liability by the Respondent, not a concession by the State of Vermont that its charges are not well founded. To avoid delay, uncertainty, inconvenience, and expense of protracted litigation of the charges above the Parties reach a full and final agreement pursuant to this Stipulation and that the Board may impose the Consent Order set forth below. The Respondent does not admit to the alleged facts as outlined above, but does not contest that the State could prove some or all of them by a preponderance of the evidence if this matter went to a merits hearing.
18. Respondent understands that the Board of Allied Mental Health Practitioners must review and accept the terms of the Consent Order. If the Board rejects any portion, the entire Stipulation and Consent Order shall be null and void.
- 19 Respondent specifically waives any claims that any disclosures made to the full Board during its review of this agreement have prejudiced her rights to a fair and impartial hearing in future hearings if this agreement is not accepted by the Board. When the Board reviews this Stipulation the State's disclosures to the Board shall consist solely of the terms contained in this Stipulation and Consent Order.
20. Respondent has read and reviewed this entire document and agrees that it contains the entire agreement between the parties.
21. Respondent voluntarily enters this agreement after the opportunity to consult with legal counsel and is not being coerced by anyone into signing the Stipulation and Consent Order.
22. Respondent voluntarily waives her right to charges and a contested hearing before the Board of Allied Mental Health Practitioners and waives any right to appeal from this Stipulation and Consent Order.
23. This Stipulation is neither an admission of liability by the Respondent nor a concession

by the State of Vermont that its charges are not well founded. To avoid delay, uncertainty, inconvenience, and expense of protracted litigation of the charges above the Parties reach a full and final agreement pursuant to this Stipulation and that the Board may impose the Consent Order set forth below.

ORDER

Based on the Stipulation above it is **ORDERED AND ADJUDGED** as follows:

- A. The Board finds and accepts the facts as alleged in paragraphs 11-16 above; and
- B. Therefore, the Board finds that there is a sufficient factual basis to conclude that the Respondent has engaged in unprofessional conduct and has violated the statutory and regulatory provisions set forth in paragraphs 2-10 above.
- C. The Board hereby **SUSPENDS** Respondent's license 068-0000715 to practice clinical mental health **for a minimum period of thirty (30) days**. This suspension shall commence June 1, 2011.

Once reinstated the Respondent's license to practice as a clinical mental health counselor shall be **CONDITIONED for a PERIOD OF ONE (1) YEAR**.

The **CONDITIONS** on Respondent's license are as follows:

(1) Supervision.

Respondent shall permit her practice to be supervised by the Board through another mental health practitioner approved by the Board. Respondent shall submit the name and qualifications of three potential supervisors 60 (sixty) days before the date of reinstatement of the Respondent's license.

- a. The Respondent shall submit three names of potential supervisors with curriculum vitae; a cover letter from each supervisor and willingness to provide supervision; and the detail and type of any professional, personal or community relationship that the supervisor had with the Respondent in the past.
- b. The supervisor must have been a licensee of the Board for at least the last three years. The supervisor must be willing to meet with the Respondent at least once every other week for face-to-face consultation and must provide for substitute consultation for when the supervisor cannot meet.
- c. A supervision plan shall be submitted to the Board for review and it shall include:
1) the goals and objectives of the supervision, with an emphasis on dual relationships and ethical issues; 2) identification of professional resources to be employed; and 3) description of how the Respondent's clinical work will be assessed.
- d. The supervisor shall create and submit monthly reports concerning the progress of

the Respondent in relation to the goals and objectives outlined in the supervision plan. The supervisor shall meet with the Respondent for a minimum of one (1) hour every other week.

(2) **Ethics Course Work**

The Respondent shall take three (3) credits of graduate level courses in ethics, dual relationships and boundaries. This program must be approved by the Board in advance. This course must be completed within the one (1) year conditioned period.

(3) **Administrative Penalty**

The Respondent shall pay an administrative penalty in the amount of five-hundred dollars (\$500.00) before the completion of the conditioned licensed period.

D. Respondent shall bear the cost of compliance with the steps that Respondent has agreed to undertake pursuant to this Consent Order.

E. If Respondent violates the terms of this Consent Order, the Board, after giving Respondent notice and an opportunity to be heard, may take further disciplinary action.

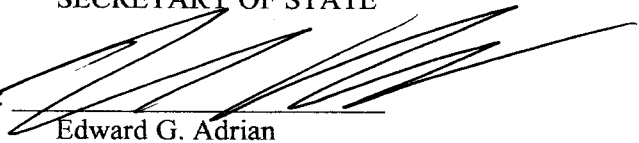
F. This Stipulation and Consent Order shall remain part of Respondent's licensing file and may be used in any further disciplinary proceeding.

G. This Stipulation and Consent Order is a matter of public record and may be reported to other licensing authorities as provided in 3 V.S.A. §129(a).

AGREED TO:

STATE OF VERMONT
SECRETARY OF STATE

Dated: 4/15/11

by: 

Edward G. Adrian
State Prosecuting Attorney

RESPONDENT
RHONDA J. FOLEY

Dated: ✓ 4-14-11

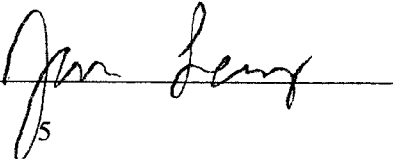
by: 

Rhonda J. Foley

APPROVED AS TO FORM:

ATTORNEY FOR RESPONDENT

Dated: 4/14/11

by: 

James Leary, Esq.

APPROVED AND SO ORDERED: VERMONT BOARD OF ALLIED MENTAL
HEALTH PRACTITIONERS

Dated: 4/21/11

by: Marilyn Turcotte
Chairperson

Dated entered: 4/21/11

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